

# STATE OF NEW YORK

1820--A

2025-2026 Regular Sessions

## IN SENATE

January 14, 2025

Introduced by Sens. FERNANDEZ, ADDABBO, CLEARE, JACKSON -- read twice and ordered printed, and when printed to be committed to the Committee on Education -- recommitted to the Committee on Education in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to establishing a pilot program to provide high impact tutoring

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The education law is amended by adding a new section 3641-c  
2 to read as follows:

3 § 3641-c. High impact tutoring grant program. 1. For the purposes of  
4 this section, the following terms shall have the following meanings:

5 (a) "local education provider" or "local education provider group"  
6 means:

7 (i) a public school or a group of public schools operated by a school  
8 district; or

9 (ii) a charter school or a group of charter schools established pursu-  
10 ant to article fifty-six of this chapter; and

11 (b) "high impact tutoring pilot program" means a grant program estab-  
12 lished and administered by the department pursuant to this section.

13 2. The department shall establish and administer a high impact tutor-  
14 ing pilot program to provide grants to local education providers to  
15 implement high impact tutoring programs prioritizing low-income or  
16 underserved students to address student learning loss or unfinished  
17 learning resulting from the COVID-19 pandemic.

18 3. (a) A local education provider shall submit an application for a  
19 grant to the department in a form determined by the department. A local  
20 education provider or group of local education providers may apply  
21 jointly for such grant. The local education provider shall demonstrate  
22 need for support through the grant program, as determined by the depart-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

LBD05291-02-6

1 ment, which may include serving a high percentage of low-income or  
2 underserved students, or serving students who need academic assistance  
3 in reaching levels of proficiency and have a low level of attainment  
4 scores in the past year.

5 (b) At a minimum, an application shall include the local education  
6 provider's high impact tutoring program plan that includes the following  
7 information:

8 (i) how the local education provider's program plan addresses the  
9 following elements of a high impact tutoring program and how it modifies  
10 or omits such elements and the reasons for such modifications or omis-  
11 sions:

12 (1) tutoring is provided in groups of four or fewer students;

13 (2) the same tutor instructs the participating students throughout the  
14 school year;

15 (3) tutoring is provided a minimum of three times per week;

16 (4) tutoring is implemented during the school day or before- or  
17 after-school, or an equivalent out-of-school evidence-based approach,  
18 and is supplemental to core academic instruction and not a replacement  
19 for such instruction;

20 (5) high quality trained tutors provide such tutoring, including  
21 teachers, paraprofessionals, community providers, AmeriCorps members,  
22 and any other individuals who have received training;

23 (6) the program uses a high-quality curriculum that is aligned with  
24 academic standards and may be provided by the local education provider;  
25 and

26 (7) tutoring is data-driven, with interim assessments to monitor  
27 student progress;

28 (ii) how students will be identified for participation in the program;

29 (iii) the number of students projected to be served and whether those  
30 students are low-income or underserved students;

31 (iv) the projected cost of implementing the program;

32 (v) how student academic progress and other program outcomes will be  
33 measured;

34 (vi) whether the local education provider will create its own program  
35 and whether it will partner with existing tutoring providers for imple-  
36 mentation or for tutor capacity and training;

37 (vii) which academic subjects will be the focus of the program;

38 (viii) how the local education provider will be supported;

39 (ix) how tutoring will be delivered and how the delivery will accommo-  
40 date remote learning;

41 (x) whether tutors will follow a specific curriculum;

42 (xi) how tutoring will be incorporated into the school day, if appli-  
43 cable;

44 (xii) the needs of a rural local education provider for financial or  
45 technical support to implement a high impact tutoring program; and

46 (xiii) any other criteria determined by the department.

47 (c) Local education providers implementing high impact tutoring  
48 programs shall consider seat time and scheduling so that students have  
49 consistent access to non-core academic instruction.

50 (d) The department shall review the applications received pursuant to  
51 this subdivision and shall award grants after considering the alignment  
52 of the local education provider's program plan with the elements of a  
53 high impact tutoring program as described in this subdivision.

54 4. Within the amounts appropriated therefor, the department shall  
55 determine the amount and durations of grant awards. The goal of such  
56 grant awards shall be to serve as many students as possible through high

1 impact tutoring programs, including low-income and underserved students  
2 and students in rural areas, while ensuring that grant money is awarded  
3 to high impact tutoring programs that are likely to achieve positive  
4 student outcomes.

5 5. (a) The department shall determine allowable uses for grant money,  
6 which uses may include, but need not be limited to, hiring or contract-  
7 ing for tutors or providing stipends or other incentives to paraprofes-  
8 sionals, retired teachers, AmeriCorps members, and community organiza-  
9 tions to ensure tutoring capacity; developing curriculum and related  
10 supplies; covering costs associated with renting or purchasing physical  
11 space for tutoring and covering administrative expenses. A local educa-  
12 tion provider may make a request to the department to use grant money  
13 for purposes other than those specified by the department if the  
14 proposed use of the grant money increases the effectiveness of the high  
15 impact tutoring program.

16 (b) Local education providers may offer tutors and other professionals  
17 offering tutoring services information about potential pathways into the  
18 teaching profession for the school district.

19 (c) Local education providers, tutors and other professionals offering  
20 tutoring services shall comply with all state and federal laws relating  
21 to health, safety, and antidiscrimination, including, but not limited to  
22 Titles VI and VII of the Civil Rights Act of 1964 Pub.L. 88-352, as  
23 amended; the Americans with Disabilities Act of 1990, 42 U.S.C. Sec.  
24 1201 et seq., as amended; section 504 of the Rehabilitation Act of 1973,  
25 29 U.S.C. Sec. 794, as amended, and Title IX of the Education Amendment  
26 of 1972, 20 U.S.C. Secs. 1681 to 1688, as amended.

27 6. (a) On or before the reporting deadlines established by the depart-  
28 ment, in each year in which a local education provider or group of  
29 providers receives a grant pursuant to this section, the provider or  
30 providers shall submit a report to the department that includes the  
31 information required by the department. At a minimum, the report shall  
32 include the following information:

33 (i) the number of students who participated in the high impact tutor-  
34 ing program and nonidentifying information, including demographic infor-  
35 mation, relating to those students;

36 (ii) any adjustments made to the local education provider's program  
37 plan and the reason adjustments were made;

38 (iii) how the local education provider maintained consistent access  
39 for participating students to non-core academic instruction;

40 (iv) how program grants were used by the local education provider and  
41 a summary of other resources used, if any, to provide high impact tutor-  
42 ing beyond the resources provided through the program;

43 (v) the academic achievement results or other criteria used to place  
44 students in the high impact tutoring program;

45 (vi) the impact or student outcomes associated with the local educa-  
46 tion provider's high impact tutoring program; and

47 (vii) whether the local education provider's high impact tutoring  
48 program will continue in the following fiscal year and if not, the  
49 reason the tutoring program will not continue.

50 (b) On or before July first of each year that a high impact tutoring  
51 program is implemented pursuant to this section, the department shall  
52 submit a summarized report to the education committees of the senate and  
53 the assembly concerning the program, including, at a minimum, the grants  
54 awarded, the participating local education providers, the duration of  
55 the program, and a summary of the information provided pursuant to para-  
56 graph (a) of this subdivision concerning the high impact tutoring

- 1 programs implemented by the local education providers and of available
- 2 student outcomes.
- 3 § 2. This act shall take effect immediately.